

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #
Date of filing:

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J.O., an infant by his Mother and Natural Guardian,
SOPHIA GUZMAN and SOPHIA GUZMAN,
individually,

Plaintiff designates Kings County
as the place of trial

Plaintiffs,

SUMMONS

-against-

Basis of the venue is Locus of
Occurrence

THE CITY OF NEW YORK, POLICE OFFICER
ANTONIO SAINTJEAN-Shield # 15246,

Locus of Occurrence
Teachers Preparatory High School
226 Bristol Street
Brooklyn, New York 11212

Defendants.

County of Kings

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
26 Court Street, Suite 1200
Brooklyn, New York 11242
(718)522-1020

POLICE OFFICER ANTONIO SAINTJEAN-
Shield # 15246
Tax ID # 962076
c/o New York City Police Department- 73rd
Precinct
1470 East New York Avenue
Brooklyn, New York 11212

New York City Police Department
1 Police Plaza
New York, New York 10007

Dated: Brooklyn, New York
October 14, 2024

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
J.O., an infant by his Mother and Natural Guardian,
SOPHIA GUZMAN and SOPHIA GUZMAN,
individually,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ANTONIO SAINTJEAN-Shield # 15246,

Defendants.

-----X

Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF J.O., AN INFANT BY
HIS MOTHER AND NATURAL GUARDIAN, SOPHIA GUZMAN**

1. That at all times hereinafter mentioned, the plaintiffs were and still are residents of the County of Queens, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on January 8, 2024, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiffs were held on February 28, 2024.

6. That on November 15, 2023, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER ANTONIO SAINTJEAN-Shield # 15246, as a police officer, agent, servant and/or employee.

7. That on November 15, 2023, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, J.O., was lawfully at or about the premises known as Teachers Preparatory High School, located at 226 Bristol Street, in the County of Kings, City and State of New York.

8. That on November 15, 2023, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, J.O., was a student at the Teachers Preparatory High School, located at 226 Bristol Street, in the County of Kings, City and State of New York.

9. That on November 15, 2023, and at all times hereinafter mentioned and upon information and belief, while at inside the aforementioned premises, specifically in a stairwell nearest the cafeteria thereat, the infant plaintiff, J.O., was approached and was assaulted and battered by the defendant, POLICE OFFICER ANTONIO SAINTJEAN-Shield # 15246. The assault and battery consisted of being grabbed, thrown face first against a wall, had a forearm oppressed into his back, had his arms violently pulled back and was forcefully placed in handcuffs. The infant plaintiff, J.O., was read his Miranda rights while in handcuffs and was kept in the school for a while without being able to leave until he was eventually released without being charged with a crime. The plaintiff, SOPHIA ORTIZ, was notified that defendant, POLICE OFFICER ANTONIO SAINTJEAN-Shield # 15246, had mistakenly identified her son, infant plaintiff, J.O., as someone else.

10. That on November 15, 2023, and at all times hereinafter mentioned and upon information and belief, infant plaintiff, J.O., was assaulted and battered by defendant, POLICE OFFICER ANTONIO SAINTJEAN-Shield # 15246, who was acting within the scope of his employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

11. That on November 15, 2023, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

12. That on November 15, 2023, and at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICER ANTONIO SAINTJEAN-Shield # 15246, who committed the aforementioned assault and battery upon the infant plaintiff, J.O., was acting within the scope of his employment with the defendant, THE CITY OF NEW YORK.

13. That on November 15, 2023, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

14. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

15. By the reason of the foregoing, the infant plaintiff, J.O., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF J.O., AN INFANT BY
HIS MOTHER AND NATURAL GUARDIAN, SOPHIA GUZMAN**

16. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "15" herein, as though more fully set forth herein at length.

17. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officer, agents, servants, and employees and were negligent in the hiring, training and retention of the defendant, POLICE OFFICER ANTONIO SAINTJEAN-Shield # 15246, who assaulted, battered and violated the civil rights of the infant plaintiff, J.O..

18. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendant, POLICE OFFICER ANTONIO SAINTJEAN-Shield # 15246, and continued to employ him and allowed him to be in contact with the public at large.

19. By the reason of the foregoing, infant plaintiff, J.O., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF J.O., AN INFANT BY HIS
MOTHER AND NATURAL GUARDIAN, SOPHIA GUZMAN**

20. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "19" herein, as though more fully set forth herein at length.

21. That on November 15, 2023, and at all times hereinafter mentioned and upon information and belief, defendant, POLICE OFFICER ANTONIO SAINTJEAN-Shield # 15246, was working within the scope of his employment and authority with the defendant, THE CITY OF NEW YORK, when he arrested and confined the infant plaintiff, J.O..

22. That on November 15, 2023, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

23. That as a result of the aforesaid false arrest and confinement, the infant plaintiff, J.O., sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

24. By the reason of the foregoing, the infant plaintiff, J.O., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR INTENTIONAL AND
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS ON BEHALF OF J.O.,
AN INFANT BY HIS MOTHER AND NATURAL GUARDIAN, SOPHIA GUZMAN**

25. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "24" herein, as though more fully set forth herein at length.

26. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER ANTONIO SAINTJEAN-Shield # 15246, acted intentionally, recklessly and with utter disregard to the consequences of his actions and caused severe emotional distress to the plaintiff through his actions.

27. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the infant plaintiff, J.O.

28. That as a result of said intentional and negligent acts, the infant plaintiff, J.O., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

29. By reason of the foregoing, the infant plaintiff, J.O., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF J.O., AN INFANT BY
HIS MOTHER AND NATURAL GUARDIAN, SOPHIA GUZMAN**

30. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "29" herein, as though more fully set forth herein at length.

31. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by infant plaintiff, J.O.

32. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officer, including but not limited to POLICE OFFICER ANTONIO SAINTJEAN-Shield # 15246,

lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

33. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

34. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER ANTONIO SAINTJEAN-Shield # 15246, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

35. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendant, including but not limited to POLICE OFFICER ANTONIO SAINTJEAN-Shield # 15246, is an unfit officer who had previously committed the acts alleged herein and/or had a propensity for unconstitutional conduct.

36. As a direct and proximate result of this unlawful conduct, the infant plaintiff, J.O., sustained the damages hereinbefore alleged.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF J.O., AN INFANT BY
HIS MOTHER AND NATURAL GUARDIAN, SOPHIA GUZMAN**

37. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "36" herein, as though more fully set forth herein at length.

38. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

39. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agent, servant and/or employee, including but not limited to POLICE OFFICER ANTONIO SAINTJEAN-Shield # 15246, herein-above

alleged.

40. By the reason of the foregoing, the infant plaintiff, J.O., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
LOSS OF SERVICES ON BEHALF OF SOPHIA GUZMAN
AS MOTHER AND NATURAL GUARDIAN OF INFANT , J.O.**

41. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "40" herein, as though more fully set forth herein at length.

42. That at all times hereinafter mentioned, the plaintiff, SOPHIA GUZMAN , was the lawful Mother and Natural Guardian of the infant plaintiff, J.O., and as such said plaintiff, SOPHIA GUZMAN, was entitled to the society and services of said infant plaintiff, J.O.

43. By reason of the afore-described negligence of defendants, the plaintiff, SOPHIA GUZMAN , was deprived of the society and services of the infant plaintiff, J.O., and shall forever be deprived of said society and services.

44. As a result of herein above, plaintiff, SOPHIA GUZMAN , has expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for infant plaintiff, J.O.

45. That by reason of the foregoing negligence on the part of the defendants, the plaintiff, SOPHIA GUZMAN, has been damaged in a sum exceeding the jurisdictional limits of all lower Courts.

WHEREFORE, infant plaintiff, J.O., infant by his Mother and Natural Guardian, SOPHIA ORTIZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; infant plaintiff, J.O., infant by his Mother and Natural Guardian, SOPHIA ORTIZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts

on the **Second** Cause of Action; infant plaintiff, J.O., infant by his Mother and Natural Guardian, SOPHIA ORTIZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; infant plaintiff, J.O., infant by his Mother and Natural Guardian, SOPHIA ORTIZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; infant plaintiff, J.O., infant by his Mother and Natural Guardian, SOPHIA ORTIZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; infant plaintiff, J.O., infant by his Mother and Natural Guardian, SOPHIA ORTIZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; SOPHIA ORTIZ, as Mother and Natural Guardian infant plaintiff, J.O., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
October 14, 2024

Yours, etc.,


ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
26 Court Street Suite 1200
Brooklyn, New York 11242
(718) 522-1020
File No.: 23JO11-15

ATTORNEY'S VERIFICATION BY AFFIRMATION

ROBERT MIJUCA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/ Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
October 14, 2024



ROBERT MIJUCA, ESQ.